

The Folkeskole (Consolidation) Act¹

An Act to consolidate the Folkeskole Act, cf. Consolidation Act No. 730 of 21 July 2000 as amended by section 64 of Act No. 145 of 25 March 2002, section 2 of Act No. 274 of 8 May 2002, section 1 of Act No. 412 of 6 June 2002, section 54 of Act No. 1050 of 17 December 2002, section 8 of Act No. 297 of 30 April 2003, section 1 of Act No. 299 of 30 April 2003 and by Act No. 300 of 30 April 2003. The Consolidation Act shall not come into force in its entirety until 1 August 2005, as the amendments of section 1 of Act No. 297 of 30 April 2003 do not come into force until 1 August 2004, and part of the amendments of Act No. 300 of 30 April 2003 do not come into force until 1 August 2004 and 1 August 2005.

Part 1

The Aims of the Folkeskole

1. (1) The Folkeskole shall - in cooperation with the parents - further the pupils' acquisition of knowledge, skills, working methods and ways of expressing themselves and thus contribute to the all-round personal development of the individual pupil.

(2) The Folkeskole shall endeavour to create such opportunities for experience, industry and absorption that the pupils develop awareness, imagination and an urge to learn, so that they acquire confidence in their own possibilities and a background for committing themselves and taking action.

(3) The Folkeskole shall familiarise the pupils with Danish culture and contribute to their understanding of other cultures and of man's interaction with nature. The school shall prepare the pupils for participation, joint responsibility, rights and duties in a society based on freedom and democracy. The teaching of the school and its daily life must therefore build on intellectual freedom, equality and democracy.

2. (1) The Folkeskole is a municipal matter. It shall be the responsibility of the municipal council to ensure all children in the municipality free education in the Folkeskole. The municipal council shall lay down the targets and framework of the activities of the schools within the provisions of this Act, cf. section 40.

(2) The individual school shall within the given framework be responsible for the quality of the teaching in accordance with the aims laid down for the Folkeskole, cf. section 1, and it shall itself make decisions in relation to the planning and organisation of the teaching.

(3) Pupils and parents shall cooperate with the school with a view to meeting the aims of the Folkeskole.

Part 2

The Structure and Content of the Folkeskole

¹ <http://pub.uvm.dk/2003/consolidation.html>

3. (1) The Folkeskole shall comprise a one-year pre-school class, a nine-year basic (primary and lower secondary) school and a one-year 10th form.

(2) Special education and other special educational assistance shall be given to children whose development requires special consideration or support. The Minister of Education shall lay down regulations to this effect and may in this connection deviate from the provisions laid down in sections 5, 7, 8, 13, 14, 16, 28 (1), 29 and section 36 (2) and (5).

(3) The Folkeskole may offer instruction to pupils in their leisure time.

(4) The Folkeskole may offer children access to a school-leisure time scheme, if the children are enrolled in the school or have attained the minimum age for enrolment in the pre-school class.

(5) The Folkeskole may offer adults the opportunity of participating in the instruction at the 8th to 10th form levels of the Folkeskole, where geographical or other special circumstances call for it.

(6) The Folkeskole may - in cooperation with the socio-cultural and associative life of the local community, the voluntary child and youth work as well as other circles of interested citizens - contribute to or be in charge of and coordinate local cultural centre activities.

4. (1) According to rules laid down by the Minister of Education, special educational assistance shall be offered to children who have not yet started school.

(2) Pupils, whose development requires extensive consideration or support, may be offered 11 years of instruction in addition to the preschool class.

4 a. (1) Bilingual children, who have not yet started school, shall be offered support to further their linguistic development with a view to acquiring knowledge of Danish, if they need such support according to an expert's assessment. The offer comprises activities suited for stimulating the children's linguistic development.

(2) Bilingual children shall mean children having another mother tongue than Danish and who begin to learn Danish for the first time when they get into contact with the surrounding society, possibly through the teaching at school.

(3) Bilingual children not enrolled in a daycare centre shall be offered special language stimulation for 15 hours per week. This offer must be made no later than 1 August in the calendar year in which the child attains the age of three.

(4) Bilingual children enrolled in a daycare centre shall be offered special support if it is found that the children's linguistic development cannot adequately be furthered within the centre's own educational possibilities. This offer shall be made no later than when the child attains the age of three, unless the daycare centre is for children under the age of three. The scope of such support shall be determined based on a concrete assessment. The support will be provided by the municipal education authorities, always provided that the municipal council may decide that the support shall be provided by daycare centres on more closely defined terms.

(5) The municipal council shall inform the parents about the offers in pursuance of (3) above, about daycare centre opportunities and about how important it is that the children are given these opportunities.

5. (1) The content of the teaching shall be selected and organised so that it gives the pupils a possibility of absorption, a general view and a feeling of coherence. The teaching shall enable the pupils to acquire the forms of cognition and working methods of the individual subjects. The pupils shall - in an interaction with this - have the opportunity to practise and develop the acquired knowledge and skills through the instruction in interdisciplinary topics and issues.

(2) The teaching in the nine-year basic school shall cover three subject blocks, comprising for all pupils:

1) The humanities:

a) Danish at all form levels.

b) English at the 3rd to 9th form levels.

c) Christian studies at all form levels except for the form level where the confirmation preparation takes place.

d) history at the 3rd to 9th form levels.

e) social studies at the 8th and 9th form levels.

2) Practical/art subjects:

a) PE and sports at all form levels.

b) music at the 1st to 6th form levels.

c) art at the 1st to 5th form levels.

d) textile design, wood/metalwork and home economics at one or more form levels within the 4th to 7th form levels.

3) Science:

a) mathematics at all form levels.

b) science/technology at the 1st to 6th form levels.

c) geography at the 7th and 8th form levels.

d) biology at the 7th to 9th form levels.

e) physics/chemistry at the 7th to 9th form levels.

(3) The pupils shall be offered instruction in German (non-compulsory subject) at the 7th to 9th form levels.

(4) As an alternative for the individual pupil, the pupils may, as a non-compulsory subject, be offered instruction in French instead of German at the 7th to 9th form levels.

(5) The instruction in the individual subjects may also be given at higher form levels than those laid down in (2).

(6) Pupils, who have changed schools or have been without instruction for an extended period of time, shall when necessary be given supplementary instruction or another kind of educational support. Supplementary instruction or other specially organised instruction may be given to pupils who may for other reasons need temporary subject-related support.

(7) To the extent required, bilingual children in the pre-school class and at the 1st to 10th form levels shall be given instruction in Danish as a second language. The Minister of Education shall lay down provisions pertaining to the instruction in Danish as a second language for bilingual children and to mother-tongue teaching of children from member states of the European Union, from countries comprised by the agreement on the European Economic Area as well as from the Faroe Islands and Greenland. The Minister of Education may deviate from section 5, (1) to (4), sections 7 and 8, section 16 (1) and section 36 (2) when laying down provisions pertaining to instruction in Danish as a second language and mother-tongue teaching.

6. (1) The central knowledge area of the subject of Christian studies shall be the Evangelical Lutheran Christianity of the Danish National Church. At the oldest form levels, the instruction shall furthermore comprise foreign religions and other philosophies of life.

(2) If requested, a child shall be exempted from participation in the instruction in the subject of Christian studies, when the person who has custody of the child submits a written declaration to the headteacher of the school to the effect that he/she will personally assume the responsibility of the child's religious instruction. Exemption can normally only take effect from the beginning of a school year. If the child has reached the age of 15, exemption can only be granted with the child's own consent.

7. (1) The instruction offered in the basic school shall include the following obligatory topics:

- i) traffic safety,
- ii) health and sex education and family studies,
- iii) educational, vocational and labour market orientation.

(2) The instruction in educational, vocational and labour market orientation shall be organised in cooperation with the Youth Guidance Centres.

8. (1) The instruction at the 10th form level shall as obligatory subjects comprise Danish, mathematics and English, their scope corresponding to an annual total of 420 lessons.

(2) The pupils shall do an obligatory assignment chosen by the pupil himself/herself. The assignment will be given a written assessment and, if the pupil so wishes, a mark. The Minister of Education may lay down further regulations in this regard.

(3) The pupils shall prepare an education plan in accordance with the provisions of Part 2 of the Danish Act on Guidance in Relation to Choice of Education, Training and Career.

(4) The designation 10th form level may only be used in other types of school than the Folkeskole, if the instruction is comparable to the compulsory instruction of the Folkeskole's 10th form level, cf. (1) to (3), but see section 3 (2), and if the school offers the examinations related with such form level cf. section 14 (2).

(5) In addition to the instruction which must be offered in pursuance of (1)-(3), instruction must be offered to the pupils in the following subjects (non-compulsory subjects):

- i) Danish.
- ii) mathematics.
- iii) English.
- iv) German.
- v) French.
- vi) physics/chemistry.
- vii) PE and sports.
- viii) social studies.
- ix) Christian studies/religious education.

(6) Offers in pursuance of section 5 (iv) and (v) shall however only be given to pupils who have been offered instruction in German and French respectively in pursuance of section 5 (3) and (4).

(7) The pupils shall be offered non-compulsory subjects and optional subjects corresponding to at least half of the pupils' class hours. The individual pupil shall choose non-compulsory subjects and optional subjects to such an extent that the minimum requirement for number of class hours, cf. section 16 (1) (iii), is complied with.

(8) Section 5 (1) and (6) and section 10 shall only apply to the instruction at the 10th form level.

9. (1) In addition to the instruction which must be offered in pursuance of sections 5, 7 and 8, instruction may be offered to the pupils at the 8th to 10th form levels in the following subjects and topics (optional subjects):

- i) French,
- ii) word processing,
- iii) technology,
- iv) media,
- v) art,
- vi) photography,
- vii) film knowledge,
- viii) drama,
- ix) music,
- x) textile design,
- xi) wood/metalwork,
- xii) home economics,
- xiii) engine knowledge,
- xiv) other workshop subjects and
- xv) vocational studies.

(2) Instruction in Latin may be offered to pupils at the 10th form level.

(3) To pupils who have accepted the offer of French instruction in pursuance of section 5 (4) the school may offer instruction in German at the 8th to 10th form levels.

(4) The school may in cooperation with the Youth Guidance Centres offer pupils at the 8th to 10th form levels the opportunity of spending short periods of pre-vocational training in industry and institutions.

(5) The school may furthermore in cooperation with the Youth Guidance Centres offer pupils at the 8th to 10th form levels instruction which combines the practical and theoretical content in a course which can take place at or outside the school, cf. section 33.

(6) The Minister of Education may lay down regulations as to which subjects and topics other than those mentioned in (1) above the municipalities can offer to the pupils at the 8th to 10th form levels.

(7) The municipal council may approve that the pupils are offered instruction in other practical or artistic subjects or topics.

(8) The pupils at the 8th and 9th form levels shall choose minimum one optional subject or non-compulsory subject. The pupils shall be offered optional subjects to an extent corresponding to at least an annual 120 class hours.

10. (1) The Minister of Education shall lay down provisions as to the purpose of the instruction and as to central knowledge and skills areas (final targets) in subjects and compulsory topics in pursuance of sections 5 to 8 and section 9 (1) to (6). Furthermore the Minister of Education shall lay down provisions pertaining to targets for certain form levels (attainment targets) in the individual subjects/topics, with the exception of the subjects that can be planned over 1 or 2 years.

(2) Final targets and attainment targets indicate joint national targets for what the instruction aims for the pupils to acquire in terms of knowledge and skills in the subject/topic at the end of the instruction and at the end of certain form levels respectively.

(3) The Minister of Education shall publish curriculum guidelines, cf. section 40 (3) describing the content of the instruction. In addition the Minister of Education shall publish guiding materials to support the descriptions, cf. section 40 (3), for the individual subjects, with the exception of the subjects that can be planned over 1 year.

(4) The instruction in the individual subjects and topics and in interdisciplinary topics and problems, cf. section 5 (1) shall further the all-round personal development of the pupils, cf. section 1 (1).

(5) The Minister of Education may publish guiding material concerning the description of the all-round personal development of the pupils, instruction in interdisciplinary topics and problems as well as guiding assignments, examples of timetables etc.

11. (1) The teaching in pre-school classes shall as far as possible be given in the form of play and other developing activities. It shall be endeavoured to familiarise the children with the daily routines of school life.

(2) The Minister of Education shall lay down regulations as to the content of the pre-school class, including the targets for the pre-school class.

12. (1) The pupils shall be given instruction at the form level in the basic school which corresponds to their school age, cf. however section 25 (3). A pupil may however with the approval of his/her parents, cf. section 54, attend the same form for two years, if he/she has been without instruction for an extended period of time, or if other special reasons indicate that he/she will benefit from such measure. A pupil may also, under very special circumstances, skip a form.

(2) Referral to special education which is not of a temporary nature shall be made upon pedagogical and psychological counselling and upon consultation of the pupil and his/her parents.

(3) Decisions regarding the choice of subjects, cf. section 5 (3) and (4), section 8 and section 9, and regarding continued schooling in the 10th form shall be made by the pupils upon consultation of their parents, cf. section 54, and the school.

13. (1) The pupils and their parents, cf. section 54, shall be regularly informed of the opinion of the school about the pupils' benefit from their school attendance.

(2) As part of the teaching, there shall be a regular assessment of the pupils' benefit from the teaching. The assessment shall form the basis for the guidance of the individual pupil with a view to the further planning of the teaching.

(3) For pupils at the 8th to 10th form levels and for pupils leaving school after the 7th form level, the assessment of the level of attainment of the pupils in the subjects covered by section 14 (1) to (4) shall be expressed in marks (proficiency marks).

(4) Proficiency marks shall be given at least twice a year at the 8th to 10th form levels. The last proficiency marks shall be given immediately before the written examinations and shall express the pupil's proficiency in the subject at that time.

(5) At the 9th form level the pupils shall prepare an obligatory project assignment which to a significant extent shall involve topics from the subjects of history and social studies. The assignment shall be assessed in the form of a written statement and a mark. The Minister of Education shall lay down detailed regulations as to the obligatory project assignment.

(6) At the 9th form level, the pupils may furthermore carry out a free assignment on a topic chosen by themselves. This assignment may be assessed in the form of a written statement and/or by a mark, if the pupil so wishes.

(7) The school shall issue a leaving certificate for pupils leaving school at the end of the 7th form or later. The leaving certificate shall contain information on the educational activities in which the pupil has participated as well as the most recent proficiency marks given. The leaving certificate shall furthermore include information on the assessment at examinations, if any, cf. section 14 (1) to (4). A written statement and/or a mark for the obligatory project assignment may be indicated in the leaving certificate, if the pupil so wishes. An assessment of the free assignment, if any, may also be indicated in the leaving certificate, if the pupil so wishes. Any written assessment in other subjects than the examination subjects may be indicated in or enclosed with the leaving certificate as part hereof, if the pupil so wishes.

14. (1) In each of the subjects of Danish, mathematics, English, German and French, the pupils can present themselves for the leaving examination of the Folkeskole on completion of the 9th form. In addition the pupils can present themselves for a leaving examination comprising the subjects of physics/chemistry and biology.

(2). In each of the subjects of Danish, mathematics, English, German, French and physics/chemistry, the pupils can present themselves for the 10th form level examination on completion of the 10th form, cf. section 8, or present themselves for the leaving examination of the Folkeskole, cf. (1) above, always provided that a pupil can only present himself/herself for an examination in a subject when such pupil has attended classes in the subject in the school year in question.

(3) In the subject of Latin, the pupils can present themselves for an examination upon completion of the teaching.

(4) In the subjects of textile design, wood/metalwork and home economics, the pupils can present themselves for the leaving examination upon completion of the 8th form or later. The Minister of Education may however decide that the same shall apply to other practically oriented subjects covered by section 9.

(5) The questions for the written examinations shall be drawn up by the Minister of Education. The other examination questions shall be drawn up by the teacher or by an external examiner according to a decision taken by the Minister.

(6) It shall be up to the pupils themselves to decide whether they want to present themselves for examinations - upon consultation of the parents, cf. section 54, and the school.

(7) The municipal council shall comply with the pupils' wishes to present themselves for the leaving examinations of the Folkeskole and see to it that such examinations are held for persons, who are under 18 years of age at the beginning of the school year, and who do not otherwise have the possibility to present themselves for the examination.

(8) The Minister of Education shall lay down regulations pertaining to the examination requirements in each of the subjects, pupils' eligibility to present themselves for the examinations, the holding of the examinations, pupil assessment and marking, and the design and keeping of the leaving certificates.

(9) The individual school may deviate from the examination regulations in the case of pupils with special needs and bilingual pupils. The Minister of Education may lay down more detailed regulations to this effect.

15. The school year begins on 1 August. The Minister of Education shall decide the time of the summer holiday's commencement and may send out guidelines regarding the timing of holidays and non-school days.

16. (1) The Minister of Education shall determine:

i) A minimum number of annual class hours for the pupils at the 1st to 9th form levels stated

a) in total for several form levels and

b) in subject blocks and class time respectively.

ii) A total minimum number of class hours for each of the subjects of Danish and mathematics at the 1st to 3rd form levels.

iii) A total minimum number of class hours for each form level, including the pre-school class and the 10th form level.

iv) A guiding number of annual class hours for each subject.

(2) The Minister of Education may lay down more detailed regulations regarding deviation from the stipulations laid down in (1) above.

(3) When determining the number of class hours, a 60 minute lesson shall equal one class hour. The maximum daily number of class hours shall not exceed 6 hours for the pre-school class and the 1st to 3rd form levels, except for in connection with special events.

(4) The provisions in subsections (1) and (2) shall not cover educational activities outside school hours in accordance with section 3 (3) or educational activities in accordance with section 5 (6) and (7).

(5) On school days, cf. section 40 (2) (v), parts of the educational activities may be organised and planned as excursions where the pupils do not stay overnight or as school camps where the pupils stay overnight.

(6) On school days, cf. section 40 (2) (v), the Folkeskole may offer school trips where the pupils stay overnight as an alternative to the ordinary educational activities.

17. (1) The number of pupils in the pre-school class and in the classes of the basic school must normally not exceed 28 at the beginning of the school year. In special cases, the municipal council may approve a higher number of pupils in the classes of the basic school, however not more than 30.

(2) The Minister of Education may lay down provisions regulating the municipalities' operational expenditure per pupil.

18. (1) The organisation of the teaching, including the choice of teaching and working methods, teaching materials and the selection of subject-matter, shall in each subject live up to the aims of the Folkeskole and shall be varied so that it corresponds to the needs and prerequisites of the individual pupil.

(2) It shall be up to the headmaster to ensure that the class teacher and the other teachers of the class plan and organise the teaching in such a way that it offers challenges to all pupils.

(3) In the subjects, in which the pupils can present themselves for leaving examinations, cf. section 14, the content of the teaching shall be fixed in such a way that it can meet the examination requirements in the individual subjects.

(4) At each form level and in each subject, the teacher and the pupil shall cooperate continuously on determining the targets they are trying to meet. The work of the pupil shall be organised under due consideration of these targets. The establishment of working methods and the selection of subject-matter shall as far as possible take place in cooperation between the teachers and the pupils.

(5) The class teacher shall cooperate with the pupils on the solution of special tasks in relation to the class, and to the subject of the class teacher a number of annual lessons shall be allocated with a view to carrying out this task.

19. (1) The necessary teaching materials shall be made available to the pupils free of charge. This shall however not apply to instruments and equipment used for educational activities outside school hours in pursuance of section 3 (3), and which are taken home by the pupils for their private use.

(2) At each independent school, a school library shall be established as a pedagogical service centre. The school library shall be part of the school's activities, and it shall cooperate with the public library. The school library shall make teaching materials available for the teaching of the school, including also books which the pupils can read in their leisure time, and it shall offer guidance in the use thereof.

(3) The Minister of Education may lay down more detailed provisions regarding the aims and functioning of the school libraries.

19 a. (Repealed)

Part 3

The Organisation of the School System

20. (1) The municipal council shall be responsible for the establishment of pre-school classes and for the educational provision in the basic school and the 10th form, including special education and other special educational assistance for children and young people under 18 years of age, who live or have their residence in the municipality, and whose parents wish them to be enrolled in the Folkeskole, cf. section 54. The municipal council shall furthermore be responsible for the provision of special educational assistance to children who have not yet started school.

(2) Outside of the municipalities of Bornholm and Frederiksberg and the City of Copenhagen, it shall however be the responsibility of the county council to organise and see to the special educational provision for children and young people under 18 years of age, who live or have their residence in the county, and whom the municipal council in question has submitted for recommendation to the county's provision, cf. section 21 (1). The county council shall also be responsible for the provision of special educational assistance to children who have not yet started school.

(3) Special education may be arranged for in the daycare centre or in a placement facility arranged or approved in pursuance of the Danish Social Services Act, cf. section 22. Special education of the nature mentioned in (2) above may furthermore be arranged for in boarding school form.

(4) Pupils, who reach the age of 18 during the school year, shall be entitled to continue their schooling for the rest of the school year.

21. (1) The municipal council shall submit a recommendation to the county council about special education and other special educational assistance to children, cf. section 20 (2), when the municipal council finds that the development of such children calls for special extensive consideration or support that can best be provided by the county. The provision of section 12 (2) shall apply correspondingly.

(2) The county council, in the municipalities of Bornholm and Frederiksberg the municipal council and in the City of Copenhagen the city council, shall take a decision on the detailed content of the measures, cf. (1) above. The county council shall take its decision after negotiation with the municipality based on a recommendation from the municipality, cf. section 12 (2).

22. (1) Upon agreement with another municipality or the school in question, a municipal council may, cf. (ii) to (vi) refer pupils to teaching, cf. section 20 (1), at

- i) the schools of another municipality,
- ii) a State school,
- iii) a registered private basic school,
- iv) an approved continuation school,
- v) an approved school of home economics or
- vi) an approved school for arts, craft, textile and fashion design.

(2) A county council, and the municipal councils in the municipalities of Bornholm and Frederiksberg and the city council in the City of Copenhagen, may if agreed with another county, a municipality or the school in question, cf. (iii), refer pupils for special education, cf. section 20 (2), first sentence, at

- i) the schools of another municipality,
- ii) the schools of a municipality or
- iii) the schools mentioned in (1) (ii) to (vi) above.

(3) Referral to the schools of another municipality can only comprise pupils at the 7th to 10th form levels and pupils that need teaching in special classes or at special schools as well as pupils from the municipality's outlying districts, who live closer to the school of the neighbouring municipality.

(4) Referral of children and young people to the schools mentioned in (1) (iii) to (vi) above can only take place with the parents' consent, cf. section 54, unless the referral is in pursuance of (5) or (6).

(5) A municipal council may if agreed with a day treatment facility situated in the municipality refer pupils for special education, cf. section 20 (1), at the day treatment facility. Correspondingly a municipal council may if agreed with a placement facility for children and young people situated in the municipality and established or approved in pursuance of the Danish Social Services Act, refer pupils of such placement facility to special education at the placement facility.

(6) A county council and the municipal councils in the municipalities of Bornholm and Frederiksberg and the City of Copenhagen, may refer pupils for special education on terms similar to those stated in (5), cf. section 20 (2), at a day treatment facility or placement facility for children and young people.

(7) The Minister of Education may lay down regulations governing the making of and content of agreements between a municipal council or county council and a day treatment facility or placement facility. This shall however not apply to the agreement with the schools mentioned in (1) (iii) to (vi), which have been approved as placement facilities in pursuance of the Danish Social Services Act. In special cases the Minister of Education may lay down rules as to the size of the expense for teaching at a placement facility.

(8) Teaching in pursuance of section 8 and section 9 may be shared by pupils from several schools and may be planned in cooperation with the municipal youth school so that the pupils are referred to such school if necessary. The pupils shall however, if they so wish, be able to be taught within the Folkeskole for the annual number of class hours.

23. (1) Pupils who cannot attend school for an extended period of time due to danger of infection or out of consideration for their health or welfare shall be taught in their homes or at the institution where they are staying.

(2) It shall be the responsibility of the municipal council to organise teaching in pursuance of subsection (1) at hospitals and other institutions in the municipality, which receive children between 6 and 18 years of age, unless the teaching of the children has been taken care of in some other way. The teaching may also be organised by the county council. The institution shall provide suitable premises.

(3) The Minister of Education shall lay down regulations pertaining to the teaching in pursuance of (1) and (2) above, and may in this context decide that the budgets of the municipalities for this teaching shall be submitted to the county council for approval.

24. (1) Each independent school must include at least 3 consecutive form levels, cf. however subsection (2). In this context, the pre-school class shall be considered to be the lowest form level. Schools consisting as a maximum of the lowest 3 or 4 form levels may be placed under the management of another school, unless the number of pupils exceeds 100.

(2) The municipal council may decide that an independent school only includes the 10th form level.

(3) In order to ensure an expedient school structure the municipal council may upon recommendation of the school board decide that one or more small schools and a large school or two or more small schools shall share a headmaster and possibly also a school board but retain their own separate school districts. Small schools shall mean small schools, cf. section 55 (1), in rural districts or schools whose number of pupils does not normally exceed 150 and which are situated in an urban area with less than 900 inhabitants. The Minister of Education shall lay down regulations pertaining to headmasters shared by several schools, including pertaining to representation of parents of children at all the schools that share a school board and pertaining otherwise to the cooperation between the schools, and may in this context deviate from the provisions of Part 6 regarding the administration of the municipal school system.

(4) The municipal council shall decide on the closing down of an independent school according to rules laid down by the Minister of Education. The final decision on the closing down of a school must be taken no later than 1 December of the year prior to the beginning of the school year in which the closing down is expected to take place.

24 a. Upon recommendation of the school board and the parents board of a municipal daycare facility established in pursuance of the Danish Social Services Act, the municipal council may approve that a Folkeskole possibly with a school-leisure time scheme and a daycare facility share a headmaster and board. It shall be a precondition that the school is a small school. Small schools shall mean small schools, cf. section 55 (1), in rural districts or schools whose number of pupils does not normally exceed 150 and which are situated in an urban area with less than 900 inhabitants. The Minister of Education shall lay down regulations in this regard according to agreement with the Minister of Social Affairs and may in this context deviate from the provisions of Part 6 regarding the administration of the municipal school system.

25. (1) The school shall be divided into classes according to the number of pupils enrolled, cf. section 17 (1). At small schools, a class may be made up of several form levels within the 1st to 7th form level range.

(2) When distributing children in the 1st forms of the schools of the municipality, it shall be endeavoured to keep each class together throughout the subsequent form levels in the basic school. A renewed division of classes cannot be made on the basis of the choice of subjects in pursuance of section 12 (3).

(3) For the pre-school class and the 1st and 2nd form levels, an integration of parts of the teaching may be organised. At small schools, the entire teaching at these form levels may be common. The Minister of Education may in special cases permit that an integration of the teaching shall also comprise older form levels than the pre-school class and the 1st and 2nd form levels.

(4) At the 1st to 7th form levels the teaching may be organised in teams within the individual class and across classes and form levels. Such teams may be formed for practical and pedagogical reasons. The current evaluation of the pupils' benefit from the teaching, cf. section 13 (2) may be included as part of the basis for the pedagogically motivated team formation. If the current evaluation is included as part of such basis, teams within the individual subjects cannot be formed earlier than after the beginning of the school year and can only comprise parts of the subject-matter of the individual subjects and only for short courses.

(5) At the 8th to 10th form levels the teaching may be organised in teams within the individual class and across classes and form levels. Teams may be formed for practical and pedagogical reasons or based on a current evaluation of the different needs of the pupils, cf. section 13 (2) and section 18 (4). Team formations based on a current evaluation cannot be determined in advance for an entire school year at a time.

(6) At all form levels the pupils shall be taught in their class for the majority of the class hours, cf. (1) above.

26. (1) The municipal council shall see to the transport between the school and the home or the proximity of the home of:

i) Pupils in pre-school classes and the 1st to 3rd form levels, whose distance to school is more than 2.5 km; pupils at the 4th to 6th form levels, whose distance to school is more than 6 km; pupils at the 7th to 9th form levels, whose distance to school is more than 7 km; and pupils in the 10th form, whose distance to school is more than 9 km, and

ii) pupils, whose distance to school is shorter than the above-mentioned, if considerations of their safety in traffic makes it particularly necessary.

(2) The municipal council shall furthermore see to the transport, to and from school, of sick and disabled pupils.

(3) On the conditions stated in (1) above, the county council, and in the municipalities of Bornholm and Frederiksberg the municipal council and in the City of Copenhagen the city council, shall see to the transport to and from school of pupils who receive instruction of the type mentioned in section 20 (2).

(4) In pursuance of the Social Assistance Act, the provisions laid down in subsections (1) to (3) above shall apply by analogy to the transport between school and daycare facility for pupils placed in daycare centres etc. outside school hours.

(5) The obligation to provide transport in pursuance of (1) above may be fulfilled by referring pupils to public transport or by refunding the expenses incurred in connection with their individual transport.

(6) The provisions in (1) above shall not apply to pupils who attend another school than the district school with the exception of pupils who have been referred for teaching in pursuance of section 5 (7) and section 22.

(7) The Minister of Education may lay down more detailed provisions regarding transport.

27. (1) With the approval of the parents, cf. section 54, the municipal council may arrange accommodation in the school town for pupils at the 7th to 10th form levels, if the daily transport between school and home is considered particularly unsafe or time-consuming.

(2) The accommodation may be arranged by referral to a boarding school, cf. section 22 (1), (3) and (4).

Part 4

The Teachers

28. (1) In order to be considered for a teaching post in the basic school and the 10th form, a candidate must have completed the Folkeskole teacher training programme, cf. however subsections (2) and (3), or other teacher training approved by the Minister of Education in this respect. The approval may be made conditional upon the candidate passing a test at a college of education or a Centre for Higher Education. The Minister of Education may in special cases deviate from the provision laid down in the first sentence.

(2) Persons with special qualifications may be appointed to teach certain subjects.

(3) Pre-school teachers and infant school teachers, who have received training in pursuance of the regulations laid down to this effect, may teach at the 1st to 4th form levels as well as PE and sports, textile design and home economics at the other form levels.

29. In order to be considered for a teaching post in a pre-school class, a candidate must have completed the training course for educators or one of the training programmes mentioned in section 28 (3) or a similar programme approved by the Minister of Education in this respect. The approval may be made conditional upon the candidate passing a test at an educator training college or a Centre for Higher Education. The Minister of Education may in special cases deviate from the provision laid down in the first sentence.

29 a. The activities of pre-school facilities in pursuance of section 4 (3) and (4) shall be taken care of by educators who have an education relating to bilingual children or who in some other way have qualified for such task. The activities may be taken care of by teachers with similar qualifications if there are no educators possessing these qualifications.

30. The teaching in pursuance of section 25 (3) shall be taken care of by staff with qualifications as those mentioned in section 28 or section 29.

30.a. The Minister of Education may lay down more detailed provisions regarding the qualification requirements for persons, who are to assume special teaching tasks or tasks of a special nature in connection with the teaching.

31. If requested, a teacher may be exempted from teaching the subject of Christian studies. If, on account of the exemption, full duty hours cannot be arranged for him/her, his/her salary shall be reduced accordingly; for teachers who are earning pension time, however, without any lowering of the pension age.

Part 5

Compulsory Education. Enrolment in and Admission to the Folkeskole

32. Any child resident in this country shall be subject to compulsory education under the provisions laid down in sections 33 to 35, unless the child is covered by provisions on compulsory education laid down in other legislation. The same shall apply to children who are to stay in this country for a minimum period of 6 months.

33. (1) Compulsory education means an obligation to participate in the teaching provided in the Folkeskole or in teaching which is comparable to what is usually required in the Folkeskole.

(2) Children who participate in the teaching provided at a registered free basic school, in a State school or in an upper secondary school or who receive home tuition in pursuance of the provisions laid down in the Act on Free Schools and Private Basic Schools, do not have to participate in the teaching of the Folkeskole. The same shall apply to pupils who, after having completed the 7th form, participate in teaching corresponding to the teaching of the Folkeskole at an approved continuation school, a school of home economics, a school for arts, craft, textile and fashion design or a youth school.

(3) After the 7th form, the compulsory education requirement may furthermore be met through participation in full-time instruction in the municipal youth school in pursuance of the Act on Youth Schools, Production Schools and Non-Residential Folk High Schools as well as through participation in teaching in pursuance of section 9 (5).

(4) At the request of the parents, cf. section 54, the headmaster may permit that a pupil, after 7 years of education, is wholly or partly meeting the compulsory education requirement through participation in vocational training or occupational employment, when special circumstances indicate that this is to the benefit of the pupil. For pupils covered by subsection (2), the decision shall be made by the municipal council. The permission may be made conditional upon the pupil's participation in supplementary instruction in the youth school.

34. (1) The compulsory education shall commence on 1 August of the calendar year of the child's 7th birthday, and it shall terminate on 31 July, when the child has received regular instruction for 9 years, not including the pre-school class. The compulsory education requirement shall however terminate on 31 July of the calendar year of the child's 17th birthday at the latest or when he/she has completed basic school or equivalent education, cf. section 33 (2)-(4).

(2) At the request of the parents or with their consent, cf. section 54, the municipal council may authorise that a child's education be postponed to one year after the normal commencement of compulsory education, when such a step is justified by the child's development. The authorisation may be made conditional upon the child's enrolment in a kindergarten or a pre-school class.

35. The person who has custody of the child or the person who is actually taking care of the child shall see to it that the child meets the compulsory education requirement and must not obstruct this.

36. (1) At the request of the parents, cf. section 54, a child may be enrolled in a school from the beginning of the calendar year of his/her 5th birthday.

(2) Each school has a school district of varying size compared with the individual form levels. A child shall be enrolled in school in the district of its place of residence or sojourn, cf. however (3) below, section 3 (2), section 5 (7) and section 22.

(3) The parents shall be entitled to have their child enrolled in a school outside the district, if the school in question consents to enroll the child, and if it can be done within the overall framework laid down by the municipal council in pursuance of section 40 (2). The same shall apply, if the parents want to change schools in the course of schooling. If it is not possible to fulfil all wishes for enrolment in another school than the district school, the municipal council may lay down guidelines as to which children are to be enrolled first.

(4) The municipal council may decide that the parents be allowed to choose for themselves between the district school and other schools in the municipality. If it is not possible to fulfil all

wishes for enrolment in a particular school, the municipal council shall lay down guidelines as to which children are to be enrolled first.

(5) A pupil enrolled in a school shall be entitled to continue his/her schooling at such school, cf. however section 3 (2), section 5 (7) and section 22, unless changes are made in the municipal school structure, or the pupil is transferred to another school in pursuance of section 52. This shall also apply to pupils who move to an address outside the district.

(6) The municipal council may decide that applications for enrolment shall be submitted within a certain deadline.

(7) The Minister of Education may lay down provisions to the effect that a child may in special cases be admitted to or remain in a school in another municipality than the municipality of residence, including provisions pertaining to the payment by the municipality of residence to the municipality in which the school is located.

37. (1) At the request of the parents, cf. section 54, a child shall be admitted to a pre-school class in the calendar year of his/her 6th birthday, or later.

(2) At the request of the parents, cf. section 54, a child shall be admitted to a pre-school class in the calendar year, in which he/she will be 5 years old before 1 October, if he/she is considered to be able to follow the instruction in the pre-school class with a view to proceeding to the 1st form in the following year.

38. At the request of the parents, cf. section 54, a child shall be admitted to the 1st form in the calendar year in which he/she will be 6 years old before 1 October, if he/she is considered to be able to follow the instruction in class.

39. (1) It shall be the responsibility of the headmaster that all children enrolled in the school attend their respective classes.

(2) If a child has been absent from school, the parents shall, personally or in writing, inform the school of the cause of the child's absence, cf. section 35. If the child has been absent due to illness of more than 2 weeks' duration, the school may request a medical certificate to this effect.

Part 6

The Administration of the Municipal School System

The Municipal Council

40. (1) The municipal council shall have the overall responsibility for the school system of the municipality, and it shall see to it that all children subject to compulsory education in the municipality are enrolled in the Folkeskole or receive an instruction of a similar standard to that which is normally required in the Folkeskole. The municipal council shall lay down the targets and framework for the activities of the schools. The municipal council shall supervise the activities of the schools.

(2) The municipal council shall make decisions in the following matters:

i) Grants to the school system and the financial framework of the individual schools.

ii) The appointment and dismissal of headteachers and teachers. Decisions regarding the appointment of headteachers and teachers shall be taken on the recommendation of the school board concerned, cf. section 44 (7).

iii) The school structure, including the number of schools and the size of each school in terms of form levels, special education and special educational assistance in pursuance of section 3 (2) and section 4 (2), leisure-time education in pursuance of section 3 (3), and the school leisure-time

scheme in pursuance of section 3 (4). The decisions shall be made upon consultation of the school boards of the schools concerned.

iv) The municipality's division into school districts. Decisions regarding changes in districts as a consequence of structural changes shall be made upon consultation of the school boards of the schools concerned.

v) The number of school days and the framework for the class formation, the number of class hours of the pupils, the length of the school day and the special education etc.

vi) General guidelines for the activities of the schools in pursuance of section 3 (5) and (6).

vii) Other matters that are not delegated to the individual schools, including special educational assistance pursuant to section 4 (1), referral of pupils to instruction at other schools, guidelines for enrolment and admission, wholly or partly free provision of school meals as well as the school library scheme in the municipality.

(3) The municipal council shall approve the curricula of the schools. Furthermore the municipal council shall approve descriptions of the development in the education towards attainment targets and final targets for the individual subjects, cf. section 10 (3), with a view to enhancing the teachers' possibilities of planning the instruction taking the development of the individual pupil as their starting point. The municipal council shall ensure the education's consideration for furthering of the pupils' all-round personal development through descriptions in the curricula or in another appropriate way.

(4) The municipal council may delegate its authority under this Act, wholly or partly, to the school boards with the exception of the powers in relation to the grant and employer competency. The municipal council may delegate to the school board the authority to request that the individual pupil's parents provide such pupil's meals during excursions, cf. section 50 (8), first sentence, and that the parents pay for the pupils' meals on school camps and school trips, cf. section 50 (8), second sentence, as well as to make decisions on how to cover other expenses for excursions, school camps and school trips, cf. section 50 (9), second sentence.

41. (1) After having heard the opinion of the school boards, the municipal council shall lay down a statute for the administration of the municipal school system. The statute shall among other things contain provisions about the following:

i) The number of parent representatives on the school board.

ii) The appointment of a possible member of the municipal council to the school board, cf. section 42 (3).

iii) The procedure for the election of staff representatives to the school board.

iv) The composition of possible joint advisory bodies for the municipal school system.

(2) The statute shall furthermore contain a description of any powers that may be delegated to the school board in pursuance of section 40 (4).

(3) Decisions made by the municipal council regarding the school structure etc., cf. section 40 (2) (iii) to (vii) shall be recorded in an annex to the statute.

The School Board

42. (1) A school board shall be set up at each independent school, and it shall have the following composition:

i) 5 or 7 parent representatives elected by and from among persons who have custody of children enrolled in the school, cf. however section 43 (1). The number of parent representatives must be 7

in cases where a school comprises special classes, and the parent representation for such classes must be at least 1.

ii) 2 representatives of the teachers and other staff elected by and from among the staff of the school.

iii) 2 pupil representatives elected by and from among the pupils of the school, cf. however (2) below.

(2) At the request of the school board, the municipal council may - at schools which only offer the first 5 form levels - deviate from the provision regarding pupil representation on the school board.

(3) At the request of the school board, the municipal council may decide that one of its members shall attend the meetings of the school board in a non-voting capacity.

(4) All school board members, cf. (1) above shall have the right of voting.

(5) The chairman of the school board shall be appointed from among the parent representatives.

(6) The headmaster and his/her deputy shall perform the board's secretary functions and attend the meetings of the school board in a non-voting capacity.

(7) Pupil representatives shall not attend the part of the discussions that concerns matters regarding individual pupils or teachers.

(8) The parent representatives shall be elected for 4 years, cf. however subsection (9), from 1 April of the year following new county council and municipal council elections, cf. however subsection (11). The other members shall be elected for 1 year. No person serving on the staff of the school can be a parent-elected member of the school board.

(9) The municipal council can - regardless of the provision in subsection (8), first sentence - decide that a new election shall take place to the school board of the school which receives all or a significant part of the pupils from a closed-down school.

(10) In those cases where 2 schools are merged, the municipal council may decide that all school board members function together until the expiry of the election period of the individual members.

(11) The municipal council may deviate from the provisions of (1) above in the case of municipal special schools, including municipal day schools. In the case of schools that do not have a full course of schooling, the municipal council may furthermore deviate from the provision of subsection (8), first sentence, regarding the time of election of parent representatives, including approve staggered elections. Finally the municipal council may deviate from the provisions of (1) and (8), first sentence, and section 43 (2), second sentence, in the case of schools established in pursuance of section 24 (2). The Minister of Education may lay down detailed provisions pertaining to the conditions of deviation.

43. (1) The Minister of Education shall lay down rules pertaining to the election of parent representatives to the school board.

(2) A parent representative forfeits his/her eligibility to serve on the board, if his/her child is enrolled in one of the schools referred to in section 33 (2). A parent representative may demand to be exempted from membership of the school board, if his/her child leaves the school. Exemption from election and from membership as such shall be subject to the same stipulations as those laid down in the Local Government Election Act.

(3) The municipal council may grant payment of and compensation for documented additional expenditure to parent and pupil representatives in connection with their attending to their duties of membership of the school board. The Minister of Education shall lay down detailed provisions in this regard.

44. (1) The school board shall conduct its activities within the target and framework laid down by the municipal council, cf. section 40, and it shall moreover supervise the activities of the school.

(2) The school board shall lay down the principles for the activities of the school, including

i) the organisation of the teaching, and in this context the number of lessons of the pupils at each form level, the length of the school day, the supply of optional subjects, the provision of special education at the school and the distribution of pupils in classes,

ii) the cooperation between school and home,

iii) the information of parents about the pupils' benefit from the teaching,

iv) the distribution of the work between the teachers,

v) joint arrangements for the pupils during school hours, school camps, work experience etc. and

vi) the activities of the school-leisure time scheme.

(3) The school board shall approve the budget of the school within the financial framework laid down for the school.

(4) The school board shall approve teaching materials and draw up school rules.

(5) The school board shall - within guidelines laid down by the municipal council - decide whether adults shall be allowed to take part in the teaching of the Folkeskole in pursuance of section 3 (5), and it shall lay down principles to this effect.

(6) The school board shall - within guidelines laid down by the municipal council - decide whether the activities of the school shall comprise activities in pursuance of section 3 (6), and it shall lay down principles to this effect.

(7) The school board shall submit a recommendation to the municipal council regarding the appointment of a headmaster and teachers, cf. section 40 (2) (ii).

(8) The school board shall draw up a proposal for the curricula of the school for submission to the municipal council, cf. section 40 (3). The school board shall submit its recommendation to the municipal council regarding innovation and development work to the extent such work exceeds the targets and framework laid down by the municipal council.

(9) The school board may make recommendations and proposals to the municipal council pertaining to all issues relating to the school in question. The school board shall submit recommendations regarding all questions submitted to it by the municipal council.

(10) The chairman of the school board shall draw up an agenda for each meeting. The decisions taken by the school board shall be entered in a record of decisions to be signed after the meeting by all members present at the meeting. Subject to such limitations as follow from the legislation governing confidentiality, the agenda and the record of decisions shall be available for inspection by the municipality's citizens.

(11) The school board shall submit one report annually.

(12) At least once a year the school board shall convene the parents for a joint meeting for discussion of the activities of the school. The annual report shall be discussed at such meeting, cf. (11) above.

The Headmaster of the School

45. (1) A headmaster shall be appointed at each independent school. The headmaster of a school shall be responsible for the administrative and educational management of the school and for the activities of the school vis-à-vis the school board and the municipal council.

(2) The headmaster shall be responsible for the supervision of and distribution of work tasks between the staff of the school, and he/she shall take all concrete decisions regarding the pupils of the school.

(3) The headmaster shall draw up proposals for the school board regarding the curricula of the school and descriptions, cf. section 44 (8), proposals regarding principles for the activities etc. of the school, cf. section 44 (2), and proposals for the budget of the school, cf. section 44 (3) within the financial framework laid down by the municipal council, cf. section 40 (2) (i).

(4) The headmaster shall carry on his/her activities in cooperation with the staff.

(5) The headmaster shall involve the pupils of the school, through the pupils' council if such exists, in questions relating to the safety and health of the pupils.

Advisory Bodies

46. (1) A pedagogic council, which shall act as an advisor to the headmaster, shall be set up at each school. The council shall consist of all staff performing teaching and pedagogic tasks at the school.

(2) At all schools with the 5th form level or higher form levels, the pupils are entitled to set up a pupils' council. The pupils' council shall appoint representatives of the pupils for committees etc. set up by the school to discuss questions of importance to the pupils in general. This shall however not apply to committees etc. where participation by the pupils will be contrary to other legislation. The Minister of Education shall lay down more detailed provisions pertaining to election to the pupils' councils, to the activities of the pupils' councils and to the municipal council's obligation as to the pupils' councils.

46 a. In municipalities where a joint advisory body, cf. section 41 (1) (iv), has not been established, the municipal council shall, at least twice a year, hold a meeting between representatives of the school boards and the municipality for discussion of questions concerning the conditions and development of the local school system. The municipal council may decide that others may attend the meetings.

Part 7

The Administration of the County School System

47. (1) The county council shall appoint and dismiss headmasters and teachers in the county school system within the area of the Folkeskole. Appointments shall be made upon the recommendation of the school board of the school concerned.

(2) The Minister of Education shall be responsible for the supervision of the county school system within the area of the Folkeskole. .

48. The provisions laid down in sections 42-46 shall apply by analogy to the county Folkeskoler. The Minister of Education may approve deviations motivated by special conditions pertaining to the schools.

Part 8

Expenditures in Relation to the Folkeskole

49. (1) All expenditures relating to the teaching of the Folkeskole shall rest with the municipalities in as far as there is no explicit legal framework establishing that these expenditures shall rest wholly or partly with the State, the counties or other authorities.

(2) Expenditures relating to special education in pursuance of section 20 (2) shall rest with the counties, with the exception of an amount per pupil determined by the Minister of Education, which shall rest with the municipalities.

(3) Expenditures relating to education at institutions outside the municipalities of Bornholm and Frederiksberg and the City of Copenhagen, cf. section 23 (2), shall rest with the counties.

(4) The Minister of Education may lay down rules determining which municipality and which county shall have the final responsibility for expenditures relating to the teaching of the Folkeskole etc.

50. (1) The municipal council may request payment from:

i) parents of pupils, who participate in educational activities in their leisure-time in pursuance of section 3 (3).

ii) adults participating in the teaching of the Folkeskole in pursuance of section 3 (5).

iii) persons participating in the activities of the cultural centres in pursuance of section 3 (6).

(2) The municipal council shall request payment from parents of children enrolled in a school-leisure-time scheme, cf. section 3 (4). The Ministry of Social Affairs' rules regarding payment for participation in daycare facilities for children and young people shall apply by the allocation of a family moderation to families with more than one child enrolled in school-leisure-time schemes, daycare centres etc. and in the event that a municipality decides to grant a wholly or partly free place on account of the financial circumstances of the parents or if social or pedagogical reasons call for it.

(3) Payment in pursuance of subsections (1) and (2) can be collected in pursuance of the provisions pertaining to the collection of personal taxes.

(4) If a person, who receives social benefits in pursuance of the Act on Social Assistance, has failed to pay for the school-leisure-time scheme, cf. section 3 (4), the municipal council may withhold further monthly payments of future social benefits.

(5) Arrears of payment for children's participation in the school-leisure-time scheme can be collected by means of a set-off in the family allowance according to provisions laid down in the Act on Family Allowance.

(6) The municipality shall cover all expenses whose payment is a precondition for the carrying through of excursions and school camps in pursuance of section 16 (5), cf. however subsection (8).

(7) The municipality shall pay all expenses for the teachers' participation in school trips in pursuance of section 16 (6).

(8) The municipal council may request that the parents of the individual pupil provide the pupil's meals during excursions. The municipal council may request payment from the parents in cover of the expenses for the pupils' meals in connection with school camps and school trips. This payment shall be fixed considering an estimated normally saved home consumption.

(9) The pupils and parents of the class may, possibly in cooperation with the school, through a joint collection or in any other way jointly provide means to cover expenses not covered by the municipality pursuant to (6) to (8) above. The municipality may pay other expenses.

(10) The right of the individual pupil to participate in arrangements in pursuance of section 16 (5) and (6) cannot be conditioned upon the payment of an amount of money or any other consideration.

Part 9

Complaints

51. (1) Complaints about decisions taken by the individual schools may - within a deadline of 4 weeks from the notification of the decision - be brought before the municipal authorities.

(2) A decision taken by the municipal council in pursuance of subsection (1) and other decisions taken by the municipal council regarding the municipal school system cannot be brought before a higher administrative authority, cf. however subsections (3) and (4). The Minister of Education may lay down rules to the effect that other decisions can be brought before the Minister.

(3) The municipal council's decisions regarding referral or refusal of referral to special education pursuant to section 21 (1) and the municipal council's decision to withdraw a referred can - within a deadline of 4 weeks from the notification of the decision to the parents - cf. section 54 (1), be brought before the Complaints Commission for Extensive Special Education, cf. section 51 a.

(4) The municipal council's decisions regarding family moderation and free places in pursuance of section 50 (2) may be brought before the Social Appeals Board pursuant to the Ministry of Social Affairs' executive order on payment for provision of daycare facilities for children.

(5) The county council's decisions in pursuance of (1) above and other resolutions and decisions made by the county council concerning the municipal school system cannot be brought before a higher administrative authority, cf. however (6) below.

(6) The county council's decisions in pursuance of section 21 (2) may - within a deadline of 4 weeks from the notification of the decision to the parents - cf. section 54 (1), be brought before the Complaints Commission for Extensive Special Education, cf. section 51 a.

51 a. (1) The Complaints Commissions for Extensive Special Education shall be appointed by the Minister of Education. The chairman of the Commission shall be a Master of Laws. 1 member shall be appointed upon recommendation of the Association of County Councils in Denmark, 1 member upon recommendation of Local Government Denmark and 1 member upon recommendation of the Danish Council of Organisations of Disabled People. The chairman and the members shall be appointed for 4 years. Substitutes shall be appointed for the chairman and the members.

(2) The Association of County Councils in Denmark and Local Government Denmark may each appoint a representative to attend the meetings of the Commission as an expert adviser to the member appointed by such organisation.

(3) The meetings of the Commission shall be closed meetings, unless the Commission decides otherwise in the individual case. The Minister of Education shall lay down the rules of procedure of the Commission.

(4) The Minister of Education shall upon recommendation of the Commission lay down more detailed provisions as to the activities of the Commission.

Part 10

Other Provisions

52. The Minister of Education may lay down general rules regarding measures to further good order in the schools, including rules regarding the transfer of pupils to other schools in the municipality and rules regarding the transfer of pupils in the 10th form to other educational or

occupational measures. The Minister of Education may furthermore lay down rules regarding the schools' supervision of the pupils during school hours.

53. (1) Upon negotiation between the municipal council and the ministers in the municipality, time shall be set aside for the preparation for confirmation. If agreement cannot be reached between the parties, the decision shall be taken by the municipal council upon consultation of the parish councils involved.

(2) The preparation for confirmation shall be ensured the necessary time within the framework indicated in section 40 (2) (v) and section 44 (2) (i).

54. (1) The rights of the parents in pursuance of sections 12 to 14, 20, 22, 27, 33, 34, 36 to 38 and 51 and the rules laid down in pursuance of the Act shall rest with the person(s) who has(have) the legal custody of the pupil. Pupils, who are not subject to the rules about parental custody, shall make their own decisions in pursuance of section 12 (1) (3), section 14 (6), section 20 (1), section 22 (4), and section 27 (1).

(2) The school may consider the person who has the pupil in his/her care as authorised to act on behalf of the person who has the legal custody of the pupil, except when it comes to questions of school start and duration of schooling.

55. (1) The Minister of Education may deviate from the provisions of the Act, with the exception of the provisions laid down in Part 1 and Part 4, cf. however subsection (2), to the extent it is deemed necessary in order to promote innovative work or pedagogical development work or in order to keep small schools in operation.

(2) In order to promote innovative work and pedagogical development work in connection with the pupils' starting school or extended cooperation between the public library and the school library, the minister may also deviate from the provisions of Part 4.

(3) Subject to the Minister of Education's decision, the State may award grants to innovation activities and pedagogical development work.

55 a. Upon recommendation of the school council the municipal council may approve that experiments be made with offering the pupils German and French at the 6th form level. The Minister of Education may stipulate more detailed rules in this regard.

56. For the performance of i.a. legislative and guidance functions, the Minister of Education may request any information that he/she deems necessary for the performance of these tasks from the municipal council and the county council.

56 a. The provisions of section 20 (2), section 21, section 51 (3) and (6) and section 51 a regarding the organisation of special education and special educational assistance shall be revised no later than in the sessional year 2004-05 of the Danish parliament.

Part 11

The Folkeskole Council

57. (1) The Minister of Education shall set up a Folkeskole Council. The Folkeskole Council shall act as an advisor to the minister in all questions relating to the Folkeskole and may in this context recommend the initiation of development work and research projects in relation to the Folkeskole and the youth school to the Minister.

(2) The council shall consist of a chairman and 20 members. The Minister of Education shall appoint the chairman and 2 members with specialist and pedagogical expert knowledge. The other members of the Council shall be appointed by the Minister of Education in the following way, cf. however (3):

- i) 2 members upon the joint recommendation of Local Government Denmark and the City of Copenhagen and the municipality of Frederiksberg.
 - ii) 2 members upon recommendation of the National Association of Schoolparents.
 - iii) 2 members upon recommendation of the National Union of Danish School Pupils ("Folkeskoleelevernes Landsorganisation" and "Danmarks Elevorganisation") and the associations of youth school pupils.
 - iv) 1 member upon recommendation of the Danish Association of Headmasters.
 - v) 1 member upon recommendation of the National Federation of Youth School Headmasters.
 - vi) 2 members upon recommendation of the Danish Union of Teachers.
 - vii) 1 member upon recommendation of the National Federation of Teachers in Adult and Youth Education.
 - viii) 1 member upon recommendation of the Danish Federation of Early Childhood Teachers and Youth Educators.
 - ix) 1 member upon recommendation of the Danish Association of School and Cultural Directors.
 - x) 1 member upon recommendation of the Association of County Councils in Denmark.
 - xi) 2 members upon recommendation of the Council for Basic Vocational Education and Training.
 - xii) 1 member upon recommendation of the Council for General and Vocational Upper Secondary Education.
 - xiii) 1 member upon the joint recommendation of the Danish Youth Council and the Joint Sports Council.
- (3) If out of consideration for advisory activities it becomes necessary to increase the composition of the Council, the Minister of Education may appoint another 1-2 members from organisations not entitled to recommend members pursuant to (2) above.
- (4) The members shall be appointed for a period of up to 3 years. However, members appointed in pursuance of (2) (iii) above are only appointed for 1 year. The members of the Council shall be eligible for re-appointment.
- (5) The appointment of the members shall be in accordance with the rules of the legislation regarding equality of the sexes.
- (6) If organisations entitled to recommend members do not recommend members in pursuance of subsections (2), (4) and (5), the Minister of Education may decide that the Council shall function without such members.
- (7) The Folkeskole Council shall lay down its own rules of procedure.
- (8) The Ministry of Education shall assume the secretarial functions of the council.

Part 12

Commencement and Interim Provisions etc.

58. (1) The Act shall come into force on 1 August 1994, cf. however (2)-(4).

(2) The provisions of section 14 (7) and (9), section 24 (2), first sentence, on rules pertaining to closing down of schools, section 36 (6) on school attendance in another municipality than the municipality of residence as well as section 57 on the establishment of a Folkeskole Council shall come into force on the day following the promulgation in the Danish Official Gazette.

(3) The provisions of section 14 (1) and (2), pertaining to the pupils' presenting themselves for examinations shall come into force in the school year 1995-96 for the pupils who start the 8th form level in the school year 1994-95 or later.

(4) The provision of section 13 (5) pertaining to the project assignment shall come into force on 1 August 1996 and be applicable as from the school year 1996-97.

59. Section 6 in the Folkeskole Act, cf. Consolidation Act No. 172 of 8 May 1972, shall remain in force for existing school federations.

60. (1) The Folkeskole Act, cf. Consolidation Act No. 669 of 29 July 1992, cf. however (2) and (3), shall be repealed.

(2) Section 12 (3), (4) and (5) of the Folkeskole Act, cf. Consolidation Act No. 669 of 29 July 1992, shall remain in force until the pupils, who start the 9th and 10th form levels in the school year 1994-95, have had the opportunity to present themselves for examinations after having completed the 9th and 10th form levels respectively. The Minister of Education may furthermore stipulate interim provisions in particular with regard to sections 13 and 14.

(3) Provisions laid down under the Folkeskole Act, cf. Consolidation Act No. 669 of 29 July 1992, shall remain in force until repealed or replaced by provisions laid down under this Act.

61. The Act shall not apply to the Faroe Islands and Greenland.

The Ministry of Education, 21 October 2003

Ulla Tørnæs